AS TO THE ADMISSIBILITY OF

Application No. 13348/87
by Esbjörn Hellström
against Sweden

The European Commission of Human Rights sitting in private on 12 July 1989, the following members being present:

MM. C.A. NØRGAARD, President
S. TRECHSEL
F. ERMACORA
G. SPERDUTI
E. BUSUTTIL
G. JÖRUNDSSON
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H.G. SCHERMERS
H. DANELIUS
G. BATLINER
H. VANDENBERGHE
Mrs. G.H. THUNE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY
Mr. L. LOUCAIDES

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 22 May 1987 by Esbjörn Hellström against Sweden and registered on 30 October 1987 under file No. 13348/87;

Having regard to the report provided for in Rule 40 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The facts of the case, as submitted by the applicant, may be summarised as follows.

The applicant is a Swedish citizen, born in 1946. He is a teacher by profession and is resident at Delsbo, Sweden.

The applicant submits that he made an agreement on 16 September 1983 with the Director of Education (skoldirektör) of the municipality of Umeå that he be employed by the municipality to carry out a project with the aim of theoretically and practically examining the possibilities of using a certain pedagogical method in the comprehensive school (Waldorfpedagogik). The applicant worked on the project for a few months in 1984 and was remunerated by the municipality, but by a decision of the School Board (skolstyrelsen) of 30 January 1985 the project was abandoned. The applicant appealed against the decision to the Administrative Court of Appeal (kammarrätten) of Sundsvall, which rejected the appeal, and to the

Supreme Administrative Court (regeringsrätten) which on 28 January 1987 refused leave to appeal.

COMPLAINTS

1. The applicant complains that the effect of the School Board's decision was that his family lost its main source of income and had to rely on social benefits. The applicant had to leave Umeå together with his family and, as the events there affected his possibilities of finding work elsewhere, the family had to move twice. The applicant invokes Article 8 of the Convention.

2. The applicant further complains of discrimination on account of his political, philosophical and scientific qualifications and on account of his membership in a certain trade union. He points out that he has published his political views in the Critical Education Journal (Kritisk utbildningstidskrift). He invokes Articles 9, 10 and 11 in conjunction with Article 14 of the Convention.

3. The applicant finally alleges a violation of Article 13 of the Convention in that the Supreme Administrative Court did not grant him leave to appeal.

THE LAW

1. The applicant complains that the decision of the School Board interfered with his right to respect for his private and family life and his home, as his family had to rely on social benefits and had to move twice on account of the decision. He invokes Article 8 (Art. 8) of the Convention, which reads as follows in paragraph 1:

"Everyone has the right to respect for his private and family life, his home and his correspondence."

The Commission finds that although the decision of the School Board might have had repercussions on the applicant's private and family life and his home it cannot be considered to have had such effects as to amount to an interference with the applicant's rights under Article 8 para. 1 (Art. 8-1) of the Convention.

It follows that in this respect the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

2. The applicant also complains of discrimination on account of his political, philosophical and scientific qualifications and on account of his membership in a certain trade union. He invokes Articles 9 (Art. 9), 10 (Art. 10) and 11 (Art. 11) in conjunction with Article 14 (Art. 14) of the Convention.

The Commission recalls that although the Convention does not guarantee a right of recruitment to the public service, it does not follow that in other respects civil servants fall outside the scope of the Convention (see Eur. Court H.R., Glasenapp and Kosiek judgments of 28 August 1986, Series A No. 104, p. 26, para. 49-50 and Series A No. 105, p. 20, para. 35-36). The applicant accordingly has a right to enjoy the rights and freedoms afforded to him by the Convention "without discrimination on any ground".

The Commission considers, however, that the applicant has not substantiated his allegation that he has been subjected to discrimination in respect of the enjoyment of his rights under Articles 9 (Art. 9), 10 (Art. 10) and 11 (Art. 11) of the Convention.

It follows that this part of the application is also manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

3. Finally, the applicant invokes Article 13 (Art. 13) of the Convention which guarantees to everyone having an arguable claim of being a victim of a violation of any of the other provisions of the Convention the right to an effective remedy.

With reference to its considerations and conclusions above, the Commission finds that the applicant has not made any arguable claim of a violation of any of the other provisions of the Convention.

It follows that the applicant's complaint under Article 13 (Art. 13) is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission

DECLARES THE APPLICATION INADMISSIBLE

Secretary to the Commission — President of the Commission

(H.C. KRÜGER) — (C.A. NØRGAARD)